

Tentative Rulings and Resolution Review Hearings
March 10, 2025
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court’s website (www.shasta.courts.ca.gov) and are available by clicking on the “Tentative Rulings” link under the “Online Services” tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

CANTRELL VS. JAMES F. CRUMMETT, D.D.S., INC., ET AL.

Case Number: 23CV-0202069

Tentative Ruling on Plaintiff and Defendant’s Applications for Permission to File Under Seal: Plaintiff and Defendant have each filed Applications for Permission to File Documents Under Seal, with respect to Plaintiff’s Motion, Defendant’s Opposition, and Plaintiff’s Reply on Plaintiff’s concurrently filed Motion for Leave to File a First Amended Complaint and Request for a Trial Continuance.

The parties in this action stipulated to a Protective Order (“PO”) which the Court entered on February 10, 2025. The PO provides in relevant part: “Where any Confidential Materials, or Information derived from Confidential Materials, is included in any motion or other proceeding governed by California Rules of Court, Rules 2.550 and 2.551, the party shall follow those rules.” Defendant designated the materials at issue as Confidential Information pursuant to the PO.

CRC 2.550(d) provides that the court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.

Here, both Plaintiff and Defendant have filed Applications and Supporting Declarations requesting to seal portions of their papers which reference certain information, based entirely on the underlying documents’ designation as confidential under the PO. No argument or evidence is presented regarding any of the express findings the Court must make in order to permit filing under seal. CRC Rule 2.551(a) provides that: “The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” Here, the only grounds provided for sealing is that the parties have agreed to designate the material as confidential. This is insufficient.

Both Plaintiffs and Defendants have failed to establish facts in support of sealing as required by the California Rules of Court. The Motions to Seal are **DENIED**. The three proposed orders will be modified and executed.

Tentative Ruling on Motion for Leave to File First Amended Complaint: This is an action alleging workplace harassment, retaliation, battery, and related causes of action, arising out of Plaintiff's employment at Shasta Dental Care. Plaintiff seeks leave to file a First Amended Complaint, adding Teamwork HR as a defendant with respect to the First, Third, and Ninth Causes of Action. Defendants oppose the Motion.

CCP § 473(a)(1) permits any pleading to be amended in further of justice and on any terms as may be proper, after notice to the adverse party. The Court's discretion in this regard will usually be exercised liberally to permit amendment. *Nestle v. Santa Monica* (1972) 6 Cal. 3d 920, 939. "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." *Morgan v. Sup.Ct.* (1959) 172 Cal. App. 2d 527, 530. In general, the Court should not concern itself with the validity of the proposed amendment in the motion for leave to amend. *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1048. The validity of the amendment can be challenged by a subsequent demurrer, motion for judgment on the pleadings or other appropriate proceeding. *Id.*

Delay alone is not sufficient grounds to deny a motion to amend, absent prejudice to the opposing party. *Atkinson v. Elk Corp.* (2003) 109 Cal. App. 4th 739, 761. An amendment made in the interest of justice may even be made during trial. Prejudice exists, however, where the amendment would result in a delay of trial, loss of evidence, added preparation costs, additional discovery, or other costs. The weight of the prejudices is increased where there is no explanation for the delay in amending. See, e.g., *Magpali v. Farmers Group, Inc.* (1996) 48 Cal. App. 4th 471, 486-488; *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal. App. 4th 1332, 1345; *Fisher v. Larsen* (1982) 138 Cal. App. 3d 627, 649.

In this matter, Plaintiff has complied with the requirements set forth in CRC 3.1324. Defendant argues that Plaintiff unduly delayed in bringing this motion, and that amendment will be prejudicial to Defendant. This action was filed April 25, 2023. The parties stipulated to arbitration and the matter was stayed from October 27, 2023 to April 19, 2024. The matter never proceeded to arbitration, and the parties stipulated to return to state court. After the stay was lifted, the parties then began engaging in discovery and Plaintiff received a production from Defendant on December 17, 2025 which included documents evidencing Teamwork HR's role with respect to Plaintiff's employment. Plaintiff reviewed these documents in early January 2025. Plaintiff asked Defendant to stipulate to the amendment, but Defendant refused. Therefore, Plaintiff sought leave to amend the Complaint by filing this Motion on February 11, 2025. Considering the stay of this action due to arbitration, and the undisputed timeline laid out by the parties, the Court does not find that Plaintiff unreasonably delayed in seeking leave to amend.

Amendment of the Complaint to add Teamwork HR as a Defendant will necessarily delay trial, which is currently set for May 6, 2025. However, the weight of prejudices would be heavier on Plaintiff absent amendment. This is because Plaintiff would need to file a parallel suit based on the same facts against Teamwork HR. This is an inefficient use of both party and court resources

and may result in inconsistent outcomes. Defendants will not be subject to loss of evidence, added preparation costs, or discovery that otherwise would not have been undertaken if amendment is permitted.

The Motion for Leave to File a First Amended Complaint is **GRANTED**. The proposed First Amended Complaint is attached as an exhibit to the moving papers. As the clerk may not alter a filed document, Plaintiffs are required to file the First Amended Complaint within ten days of today's hearing. Plaintiffs are reminded of the requirement to file a Proof of Service of Summons within thirty days after the filing of the amended complaint per CRC 3.110(b). The current trial date of May 6, 2025 is **VACATED**. This matter is set for review regarding trial resetting on **Monday, July 7, 2025, at 9:00 a.m. in Department 64.**

CREDITORS ADJUSTMENT BUREAU, INC. VS. STRIKE FIRST SNIPERS LLC, ET AL.

Case Number: 22CVG-01048

Tentative Ruling on Application for Judgment Debtor Examination: Petitioner Creditors Adjustment Bureau, Inc. seeks an Order for Appearance and Examination of Kelli Hayward, President of Strike First Enterprises, LLC. Code of Civil Procedure section 708.110 requires personal service to be made on the judgment debtor at least thirty calendar days prior to the examination. A Proof of Personal Service was filed on February 18, 2025, indicating that the judgment debtor was served on January 15, 2024. This is obviously a typo, as the Order for Appearance didn't issue until December 12, 2024, and the process server executed the Proof of Service on January 20, 2025. Petitioner is ordered to appear and confirm the date indicated at Item 2 is a typo and confirm that service was effected on January 15, 2025. The Court also notes that at Item 2, the box is checked indicating that there is an attachment POS-020(D). However, there is no attachment. Nonetheless, the Proof of Service indicates that the required documents were timely personally served. An amended proof of service must be filed, correcting the defects, and this must be filed within five court days of today's hearing. The debtor examination shall proceed today.

DOBBINS, ET AL. VS. CARE OPTIONS MANAGEMENT PLANS AND SUPPORT

Case Number: CVCV20-0194615

Tentative Ruling on Motion for Preliminary Approval of Class Action and PAGA Settlement: This is a wage and hour class action. Plaintiffs seek preliminary approval of a class action and PAGA settlement. The operative complaint is the Third Amended Complaint filed August 2, 2023. Plaintiffs are Marilyn Dobbins, Allyssa Gall, and Hannah Polk, each individually and on behalf of all others similarly situated. Attorneys Kane Moon, H. Scott Leviant, and Mariam Ghazaryan of Moon Law Group, P.C. represent both Marilyn Dobbins and Allyssa Gall. Kearney Littlefield LLP and Littlefield Law represent Plaintiff Hannah Polk.

The Motion for Preliminary Approval of Class Action Settlement, filed January 22, 2025, is made by Plaintiffs Marilyn Dobbins and Hannah Polk. In a footnote on page 1 of the Motion, Plaintiffs state "Plaintiff Alyssa Gall, aka Alice Parker-Combs, signed the MOU setting forth the primary terms of this Settlement but did not sign the Agreement and is not participating in this Motion as a moving party. All references to Plaintiffs herein refer to Marilyn Dobbins and Hannah Polk unless otherwise specified." (Mot. p. 1 fn. 1.) Alyssa Gall did not sign the Settlement Agreement. (Declaration of Leviant, Ex. 1.)